



CHAPTER lxi.

An Act to confirm a Provisional Order of the Minister of Health relating to Ashton-under-Lyne. A.D. 1926.
[4th August 1926.]

WHEREAS the Minister of Health has made the Provisional Order set forth in the schedule hereto under the provisions of the Local Government Act 1888: 51 & 52 Vict. c. 41.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as amended and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Ashton-under-Lyne Extension) Act 1926. Short title.

[Ch. lxi.] *Ministry of Health* [16 & 17 GEO. 5.]
*Provisional Order Confirmation (Ashton-under-Lyne
Extension) Act, 1926.*

A.D. 1926.

SCHEDULE.

BOROUGH OF ASHTON-UNDER-LYNE.

*Ashton-
under-Lyne
Order.*

*Provisional Order made in pursuance of the Local
Government Act 1888 for the extension of a Borough.*

WHEREAS by Section 54 of the Local Government Act 1888 the Minister of Health is empowered to make a Provisional Order for altering the boundary of any borough;

And whereas the existing Borough of Ashton-under-Lyne in the County Palatine of Lancaster is a Borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Burgesses of the Borough of Ashton-under-Lyne and act by the Council of the Borough which now consists of the Mayor (who is also a councillor) eight aldermen and twenty-three other councillors and the Borough for the election of councillors is divided into four wards;

And whereas the Borough is co-extensive with the Township of Ashton-under-Lyne and is an Urban District under the jurisdiction of the Mayor Aldermen and Burgesses acting by the Council;

And whereas the said Borough has a separate commission of the peace and a separate police force and in pursuance of the Education Act 1921 the Council of the Borough are the local education authority for the purposes of elementary education;

And whereas the Urban District of Hurst in the County Palatine of Lancaster which is co-extensive with the Township of Hurst immediately adjoins the said Borough;

And whereas the said Borough and the Urban District of Hurst constitute the Parliamentary Borough of Ashton-under-Lyne:

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 54 and 59 of the Local Govern-

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lxi.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

ment Act 1888 and of all other powers enabling him in that A.D. 1926.
 behalf hereby orders as follows :—

PART I.

*Ashton-
 under-Lyne
 Order.*

INTERPRETATION AND COMMENCEMENT.

1. In this Order unless the context otherwise requires— Definitions.

“ The Act of 1888 ” and “ the Act of 1894 ” mean respectively the Local Government Act 1888 and the Local Government Act 1894;

“ The added area ” means the Urban District of Hurst which is added to the existing Borough of Ashton-under-Lyne by this Order;

“ The appointed day ” means the First day of April Nineteen hundred and twenty-seven;

“ The Borough ” means the existing Borough of Ashton-under-Lyne as extended by this Order;

“ The Corporation ” means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the Council;

“ The County ” and “ the County Council ” mean respectively the Administrative County of the County Palatine of Lancaster and the County Council of that County;

“ The maps ” means the duplicate maps marked “ Map
 “ of the Borough of Ashton-under-Lyne as extended
 “ by the Ashton-under-Lyne (Extension) Order 1926 ”
 and sealed with the official seal of the Minister;

“ The Minister ” means the Minister of Health;

“ The Municipal Corporations Acts ” means the Municipal Corporations Act 1882 and the Acts amending and extending the same;

“ The Urban District ” and “ the Urban Council ” mean respectively the Urban District of Hurst and the Urban District Council of Hurst;

“ Existing ” in relation to any area altered by this Order means existing immediately before the appointed day;

Local Authority ” means a local authority as defined in Section 3 of the Local Government and other Officers’ Superannuation Act 1922 and includes the standing joint committee of a county;

“ Officer ” includes a servant and any person whose remuneration is paid by a local authority.

[Ch. lxi.] *Ministry of Health* [16 & 17 GEO. 5.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

A.D. 1926.

—
*Ashton-
 under-Lyne
 Order.*

Commence-
 ment of
 Order.

2. Save as otherwise expressly provided this Order shall come into operation on the First day of April Nineteen hundred and twenty-seven :

Provided that for the purposes of—

- (a) The division of the Borough into wards and all proceedings preliminary or relating to any election to be held in March Nineteen hundred and twenty-seven for any area affected by this Order ;
- (b) The compilation alteration or re-arrangement of any register of electors made under the Representation of the People Acts 1918 to 1922 ; and
- (c) The preparation of any precept or contribution order to be made on or after the appointed day ;

this Order shall operate from the date of the Act of Parliament confirming this Order.

PART II.

ALTERATION OF BOROUGH BOUNDARY.

Extension of
 existing
 Borough.

3.—(1) The boundary of the existing Borough the area whereof is coloured pink on the maps shall be altered so as to include in addition to that area the Urban District of Hurst the area whereof is coloured yellow and blue on the maps.

(2) The boundary of the Borough shall be that shown by the red line on the maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

Deposit and
 copies of
 maps.

4.—(1) One of the maps shall be deposited in the office of the Minister and the duplicate map shall be deposited by the town clerk of the existing Borough at his office.

(2) Copies of the map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Minister of Transport and to the Minister of Agriculture and Fisheries.

Copies of
 map to be
 evidence.

5.—(1) Copies of or extracts from the map deposited with the town clerk and certified by him to be true shall be received in all courts of justice and elsewhere as *primâ facie* evidence of the contents of the map so far as it relates to the boundary of the Borough.

(2) The map deposited with the town clerk shall at all reasonable times be open to inspection by any person liable

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lxi.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation.

A.D. 1926.

—
*Ashton-
 under-Lyne
 Order.*

(3) All fees so received shall be carried to the Borough fund.

PART III.

PROVISIONS CONSEQUENT ON EXTENSION OF BOROUGH.

6. The number of councillors of the Borough shall be increased from twenty-four to thirty and the number of aldermen of the Borough shall be increased from eight to ten.

Number of
 councillors
 and alder-
 men.

7. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect—

Municipal
 wards.

- (1) For the purposes of the election of councillors the Borough shall be divided into six wards;
- (2) The four existing municipal wards and the number of councillors assigned to those wards shall remain unaltered;
- (3) That portion of the added area which is coloured yellow on the maps shall constitute a new ward of the Borough to be called the East Ward;
- (4) That portion of the added area which is coloured blue on the maps shall constitute a new ward of the Borough to be called the West Ward;
- (5) Three councillors shall be assigned to the East Ward constituted by this article and three councillors shall be assigned to the West Ward so constituted.

8. A first election of councillors for the East Ward and for the West Ward of the Borough shall be held in March Nineteen hundred and twenty-seven and the first election of the two additional aldermen of the Borough shall be held in April of the same year and the following provisions shall apply to the elections—

Election of
 aldermen
 and coun-
 cillors in
 1927.

- (1) The Mayor and the Town Clerk of the existing Borough or such other persons as the Minister may appoint shall perform the duties devolving upon a mayor and town clerk respectively under the Municipal Corporations Acts and the Mayor shall be the returning officer at the election for both wards but may appoint some other person to act as returning officer at the election for either ward or for both wards;
- (2) Six councillors shall be elected on the Twenty-fourth day of March and two aldermen shall be elected on the Thirteenth day of April;

[Ch. lxi.] *Ministry of Health* [16 & 17 GEO. 5.]
*Provisional Order Confirmation (Ashton under-Lyne
 Extension) Act, 1926.*

A.D. 1926.

—
*Ashton-
 under-Lyne
 Order.*

- (3) The two additional aldermen shall be chosen from among the councillors elected for the East Ward and the West Ward of the Borough or from persons qualified to be councillors whose qualification arises in one of those wards.

Retirement
 of coun-
 cillors and
 aldermen
 elected in
 1927.

9.—(1) The councillors elected in the year Nineteen hundred and twenty-seven in pursuance of this Order shall retire as follows—

- (a) The councillor for each ward who is elected by the smallest number of votes on the First day of November Nineteen hundred and twenty-eight;
- (b) The councillor for each ward who is elected by the largest number of votes on the First day of November Nineteen hundred and thirty;
- (c) The other councillor for each ward on the First day of November Nineteen hundred and twenty-nine.

(2) The aldermen elected in the year Nineteen hundred and twenty-seven in pursuance of this Order shall retire as follows—

- (a) The alderman elected by the smaller number of votes on the Ninth day of November Nineteen hundred and thirty;
- (b) The other alderman on the Ninth day of November Nineteen hundred and thirty-three.

(3) If for any reason it is doubtful which of the councillors or aldermen as the case may be ought to retire on a date mentioned in this article the question shall be determined at the first or second meeting of the Council of the Borough held after the appointed day by lot conducted under the direction of the person presiding at that meeting.

County and
 Borough
 Councils
 (Qualifica-
 tion) Act
 1914.

10. For the purposes of the application to the Borough of the provisions of the County and Borough Councils (Qualification) Act 1914 the added area shall be deemed to have always formed part of the Borough.

County
 electoral
 divisions.

11.—(1) For the purpose of the election of county councillors the added area shall be separated from the Droylsden Electoral Division and—

- (a) that portion of the added area which is coloured yellow on the maps shall be added to and form part of the Ashton-under-Lyne East Electoral Division;
- (b) that portion of the added area which is coloured blue on the maps shall be added to and form part of the Ashton-under-Lyne West Electoral Division.

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lxi.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

(2) Any person who immediately before the appointed day is in office as a county councillor representing the existing— A.D. 1926.

(a) Droylsden Electoral Division;

(b) Ashton-under-Lyne East Electoral Division; or

(c) Ashton-under-Lyne West Electoral Division;

—
*Ashton-
 under-Lyne
 Order.*

shall be deemed to have been elected to represent that Electoral Division as altered by this Order and shall retire from office on the day on which he would have retired if this Order had not been made.

12. The powers and duties of the justices of the peace appointed for the existing Borough and of the clerk to those justices and of the police constables and other peace officers of the existing Borough shall extend to and apply throughout the Borough : Powers and duties of borough justices &c. extended.

Provided that—

(a) every person committing an offence in any part of the added area prior to the appointed day shall be tried and dealt with as if this Order had not been made ;

(b) every proceeding which prior to the appointed day shall have been begun by or before any justice in relation to any matter arising in or concerning any part of the added area may be continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

13.—(1) The town clerk and all other officers of the Corporation of the existing Borough who hold office immediately before the appointed day shall continue to be the town clerk and officers of the Corporation of the Borough and shall hold their offices by the same tenure as before that day. Officers of Corporation and borough auditors continued.

(2) The auditors of the existing Borough who are in office immediately before the appointed day shall continue in office until the next ordinary day of election of borough auditors.

14. Subject to the provisions of this Order all property immediately before the appointed day vested in the Corporation for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which immediately before that day are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which immediately before the appointed day attach to the Corporation in respect of the existing Borough shall on that day attach to them in respect of the Borough. Corporation property liabilities &c.

[Ch. lxi.] *Ministry of Health* [16 & 17 GEO. 5.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

A.D. 1926.

—
*Ashton-
 under-Lyne
 Order.*

Local Acts
 and Orders
 relating to
 existing
 Borough.

15.—(1) Section 43 of the Ashton-under-Lyne Improvement Act 1849 which empowers the Corporation to recover the expenses of extinguishing fires whether within or without the existing Borough is hereby repealed.

(2) Subject to the provisions of this Order the unrepealed provisions of—

(a) The Local Acts and of the Confirmation Acts specified in the First Schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that Schedule; and

(b) Any other Local Act or Provisional Order duly confirmed and affecting the existing Borough or the Corporation (including any such Local Act or Provisional Order passed or confirmed during the present session of Parliament);

as the same respectively are in force within the existing Borough immediately before the appointed day shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof and any reference therein to any township or parish or part of a township or parish within the existing Borough shall be read as including a reference to the Township of Hurst :

Provided that public notice shall be given in the added area of the provisions of Section 61 of the Ashton-under-Lyne Corporation Act 1924 (relating to ice-cream) in the manner prescribed by Section 63 of that Act and that the provisions of the said Section 61 shall come into operation within the added area at such time not being less than one month after the first publication of the advertisement as the Corporation may fix.

(3) For the purposes of this article any order which has effect as if enacted by Parliament shall be deemed to be a Provisional Order confirmed by Parliament.

Repeal of
 Confirmation
 Act and
 Order
 relating to
 Hurst and
 saving for
 protective
 clauses.

16.—(1) The Provisional Order of the Local Government Board which is set out in the Schedule to the Local Government Board's Provisional Orders Confirmation Act 1874 and relates to an extension of the Local Government District of Hurst and so much of that Act as relates to the Order aforesaid are hereby repealed.

(2) The provisions of any protective clause for the benefit of the Urban Council (or their predecessors) contained in any Local Act Confirmation Act or Order (by whomsoever obtained) shall in respect of all matters relating to or affecting any part of the added area enure to the benefit of the Corporation and shall be construed as if a reference to the Corporation were

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lxi.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

substituted for any reference to the Urban Council (or their predecessors) as the case may be.

A.D. 1926.

17.—(1) The tramway undertaking of the Urban Council shall by virtue of this Order be transferred to and vest in the Corporation and shall be maintained and managed by the Corporation as part of their tramway undertaking.

Ashton-under-Lyne Order.

Tramway Confirmation Act and Order relating to Hurst.

(2) Such of the provisions of the Acts and Orders specified in the First Schedule to this Order as apply to the tramway undertaking of the Corporation shall apply to their tramway undertaking as extended by this article.

(3) Any byelaws or regulations made by the Corporation in pursuance of the Acts and Orders relating to their tramway undertaking and in force immediately before the appointed day shall apply to the tramway undertaking of the Corporation as extended by this article.

(4) The Hurst Urban District Council Tramways Order 1900 except articles one three and six of that Order is hereby repealed and references to "the Promoters" in the unrepealed provisions of that Order shall be read as references to the Corporation.

18. The Local Acts and Confirmation Acts specified in the Second Schedule to this Order which relate to the Ashton-under-Lyne Stalybridge and Dukinfield (District) Waterworks Joint Committee (which Joint Committee is in this article referred to as "the Water Joint Committee") shall be amended so that the following provisions shall take effect—

Ashton-under-Lyne Stalybridge and Dukinfield Waterworks Joint Committee.

(1) The Borough shall form part of the contributory district of the Water Joint Committee in lieu of the existing Borough and the existing Urban District ;

(2) References in those Acts and in the Orders confirmed by the Confirmation Acts to the Borough of Ashton-under-Lyne shall be read as references to the Borough as extended by this Order and save as hereinafter provided references in the Acts and Orders aforesaid to the Urban District of Hurst or to the Urban District Council of Hurst (or their predecessors) shall be deemed to include a reference to the Borough and to the Corporation thereof ;

(3) References to the Urban District of Hurst and the Urban District Council of Hurst and the proportion of contributions to be made by that Council shall be omitted from the Schedule to the Audenshaw Urban District Council Act 1908 and for the figures $\frac{2}{7} \frac{5}{2} \frac{9}{6}$ opposite the reference to the Corporation of Ashton-under-Lyne in that Schedule there shall be substituted the figures $\frac{3}{7} \frac{0}{2} \frac{4}{6}$;

[Ch. lxi.] *Ministry of Health* [16 & 17 GEO. 5.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

A.D. 1926.

—
*Ashton-
 under-Lyne
 Order.*

- (4) The number of members of the Water Joint Committee to be appointed by the Corporation shall be increased from six to seven ;
- (5) The member of the Water Joint Committee appointed by the Urban Council shall go out of office on the appointed day and the Council of the Borough shall proceed to elect an additional member of the Water Joint Committee as if a casual vacancy had occurred among the representatives of the Borough.

Ashton-
 under-Lyne
 and District
 Joint
 Small-pox
 Hospital
 District.

19. The Ashton-under-Lyne and District Joint Small-pox Hospital Order 1904 which was confirmed by the Local Government Board's Provisional Order Confirmation (No. 12) Act 1904 shall be amended so that the following provisions shall have effect—

- (1) The Borough shall be a constituent district of the Ashton-under-Lyne and District Joint Small-pox Hospital District;
- (2) The Schedule to the Order of 1904 shall be altered by the omission of the references to the Urban District and Urban District Council of Hurst and to the number of elective members to be elected by the Urban Council and 3 shall be substituted for 2 in column 4 of that Schedule as the number of elective members representing the Borough of Ashton-under-Lyne;
- (3) The elective member representing the Urban District upon the Joint Hospital Board shall go out of office on the appointed day and the Council of the Borough shall proceed to elect an additional member as if a casual vacancy had occurred among the representatives of the Borough.

Adoptive
 Acts.

20.—(1) The provisions of the Baths and Washhouses Acts 1846 to 1925 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 (except Part V. thereof) and the Public Libraries Acts 1892 to 1919 shall be in force within and apply to the Borough as if the same had been adopted for the Borough.

(2) If before the appointed day any provisions of the Public Health Act 1925 shall have been adopted by the Corporation and shall be in force within the existing Borough those provisions shall be in force within and apply to the Borough.

(3) The provisions of any adoptive Act (other than the Burial Acts 1852 to 1906) shall subject to the provisions of this article cease to be in force within and apply to any part of the added area.

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lxi.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

(4) Notwithstanding paragraph (3) of this article all powers duties capacities liabilities and obligations under the Private Street Works Act 1892 with which the Urban Council may be invested immediately before the appointed day shall be deemed to vest in and attach to the Corporation so far as regards any works in the added area executed by the Urban Council under that Act before the appointed day or in respect of which the Urban Council before that day shall have passed a resolution or shall have served notices.

A.D. 1926.

—
*Ashton-
 under-Lyne
 Order.*

(5) Any order under the Infectious Disease (Notification) Act 1889 or under any adoptive Act mentioned in paragraph (1) or paragraph (2) of this article which is in force immediately before the appointed day throughout the existing Borough shall extend and apply to the added area and any order under the Infectious Disease (Notification) Act 1889 in force immediately before that day within the added area shall save as hereinbefore provided cease to be in force within that area.

21. Subject to any order which the Minister or the Secretary of State may make on or after the appointed day the following provisions shall have effect as regards orders under the Public Health Acts Amendment Act 1907 or the Public Health Act 1925—

Orders under
 Public
 Health Acts
 Amendment
 Act 1907 or
 Public
 Health Act
 1925.

- (1) The provisions of any order made before the appointed day and declaring to be in force throughout the existing Borough any Parts or Sections of either of those Acts shall have effect as if any reference in that order to the existing Borough extended and applied to the Borough and as if the said Parts or Sections were accordingly declared to be in force within the Borough;
- (2) Any other order under either of those Acts which is in force immediately before the appointed day throughout the existing Borough shall extend and apply to the added area;
- (3) The provisions of any order made before the appointed day and declaring to be in force within the added area any Parts or Sections of either of those Acts shall cease to apply to the added area and the Parts or Sections declared by any such order to be in force shall save as hereinbefore provided cease to be in force within the added area.

22.—(1) The Burial Acts 1852 to 1906 shall be in force within and apply to the Borough.

Burial
 Acts 1852
 to 1906 and
 transfer of
 cemetery.

(2) The Corporation shall be the Burial Board for the Borough and shall have within the Borough to the exclusion of any other burial authority all the powers duties and liabilities of a Burial Board under the Burial Acts 1852 to 1906 :

[Ch. lxi.] *Ministry of Health* [16 & 17 GEO. 5.]
*Provisional Order Confirmation (Ashton-under-Lyne
Extension) Act, 1926.*

A.D. 1926.

—
*Ashton-
under-Lyne
Order.*

Provided that no approval sanction or authorisation of the vestry of any parish within the Borough shall be required in respect of any act of the Corporation as the Burial Board.

(3) All property and liabilities which immediately before the appointed day are vested in or attach to the Urban District Council in the execution of the Public Health (Interments) Act 1879 shall by virtue of this Order be transferred to and vest in the Corporation as the Burial Board for the Borough.

(4) Any cemetery transferred to the Corporation by this article shall be held maintained and managed by the Corporation as if it had been acquired and constructed under the Burial Acts 1852 to 1906 and the provisions of those Acts shall extend and apply to the cemetery.

(5) Subject to the provisions of the Cemeteries Clauses Act 1847 and of the Burial Act 1900 any table of fees and charges in force in respect of a cemetery transferred to the Corporation by this Order shall continue in force and the fees and charges shall thenceforth be receivable by the Corporation acting as a Burial Board until any such table may be varied or revoked by the Corporation.

(6) Nothing in this Order shall prejudice or affect any right of burial or of constructing a burial place or of erecting or placing any monument tablet gravestone or inscription which any person may have acquired prior to the appointed day in relation to any cemetery or burial ground.

(7) Nothing in this Order shall prejudicially affect any right privilege authority or duty which immediately before the appointed day is exerciseable by or attaches to any incumbent or sexton under the Burial Acts.

Orders under
Sections 33
and 34 of
Act of 1894.

23.—(1) The powers duties and liabilities transferred to or conferred upon the Corporation by the order of the Local Government Board under Section 33 of the Act of 1894 dated the Twenty-first day of August Eighteen hundred and ninety-five in relation to the appointment and revocation of the appointment of assistant overseers shall be deemed to have been transferred to or conferred on the Corporation in respect of the Borough and of the Townships of Ashton-under-Lyne and Hurst.

(2) The powers duties and liabilities of a parish council under Section 14 of the Act of 1894 conferred upon the Corporation and the Urban District Council respectively by orders of the Local Government Board dated the Sixteenth day and the Ninth day of March Eighteen hundred and ninety-six shall be deemed to have been conferred upon the Corporation in respect of the Township of Ashton-under-Lyne and of the Township of Hurst respectively.

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lxi.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

(3) The orders of the Local Government Board referred to in the foregoing paragraphs of this article shall be read as amended so as to give effect to the provisions of this article and any other order under Section 33 or Section 34 of the Act of 1894 shall cease to have effect in the Borough or any part thereof.

A.D. 1926.

—
*Ashton-
 under-Lyne
 Order.*

24. Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 or any subsequent Act providing for the closing of shops and in force immediately before the appointed day in any area affected by this Order shall subject to the provisions of such Acts remain in force and apply to the area to which it applied before that day.

Orders under
 Shop Hours
 Act 1904 or
 Shops Acts
 1912 to 1920.

25.—(1) Subject to the provisions of this Order—

Byelaws
 regulations
 &c. of
 Corporation.

(a) The byelaws made by the Corporation with respect to—

(i) new streets and buildings which were confirmed on the Sixteenth day of March Eighteen hundred and seventy-four; and

(ii) slaughter-houses which were confirmed on the Fourteenth day of April Eighteen hundred and fifty-one and the Seventeenth day of August Nineteen hundred and ten;

in so far as such byelaws may be in force within the existing Borough immediately before the appointed day shall on that day (unless previously repealed or altered) cease to be in force within any part of the Borough;

(b) Save as hereinbefore provided all byelaws and every scale of charges made by the Corporation or by their Watch Committee which immediately before the appointed day may be in force within the existing Borough shall extend and apply to the Borough until such byelaws or scale of charges may expire be altered or repealed.

(2) In this article “byelaws” includes any regulation and “scale of charges” includes any list of tolls or table of fees or payments.

26.—(1) Subject to the provisions of this Order—

Byelaws
 regulations
 &c. of
 Urban
 Council and
 County
 Council.

(a) All byelaws made by the Urban Council (or their predecessors) and in force immediately before the appointed day within the added area shall on that day cease to be in force therein except as regards any work which has been begun before that day or as regards any work which has not been so begun

[Ch. lxi.] *Ministry of Health* [16 & 17 GEO. 5.]
*Provisional Order Confirmation (Ashton-under-Lyne
Extension) Act, 1926.*

A.D. 1926.

—
*Ashton-
under-Lyne
Order.*

but for which plans have been approved before that day by the Urban Council or have been sent to their surveyor or clerk one month at least before that day and have not been disapproved by that Council;

(b) All byelaws made by the County Council or by the Standing Joint Committee of the County and in force immediately before the appointed day within the added area shall in so far as byelaws to the like effect could be made by the Corporation cease to be in force within that area.

(2) As regards any work within the exception in paragraph (1) (a) of this article the byelaws in force immediately before the appointed day shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Urban Council and the Urban District.

(3) Any proceedings which if this Order had not been made might have been taken by the County Council by the Standing Joint Committee of the County or by the Urban Council for any offence committed before the appointed day against any byelaws which by virtue of this article cease to be in force may be taken by the Corporation as if those byelaws had remained in force and the Corporation had been substituted therein for that Council or Committee.

(4) In this article "byelaws" includes any regulation.

Dissolution
property &c.
of Urban
Council.

27.—(1) Subject to the provisions of this Order—

(a) The Urban Council shall be abolished and shall cease to exist;

(b) All property or liabilities which immediately before the appointed day are vested in or attach to the Urban Council shall by virtue of this Order be transferred to vest in or attach to the Corporation as urban authority for the execution of the Public Health Acts.

(2) All rates made by the Urban Council which are not collected immediately before the appointed day and all other sums then due to the Urban Council may be recovered by the Corporation.

Mortgage
debts of
Urban
Council and
Corporation.

28.—(1) Subject to the provisions of this Order—

(a) The liability for the repayment of so much of any moneys borrowed by the Urban Council as immediately before the appointed day are owing and for the payment of the interest thereon shall by virtue of

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lxi.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

this Order be transferred to and attach to the Corporation; A.D. 1926.

- (b) So much of any moneys borrowed by the Urban Council as immediately before the appointed day are owing and charged upon a fund or rate of that Council together with so much of any sums borrowed by the Corporation as immediately before that day are owing and charged upon a fund or rate of the existing Borough shall be charged upon the corresponding fund or rate of the Borough;

—
*Ashton-
 under-Lyne
 Order.*

- (c) All borrowed moneys to which this article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

(2) Nothing in this Order shall prejudice or affect any mortgage or other security which has been granted in respect of any borrowed moneys the liability for the repayment of which is transferred from the Urban Council to the Corporation by this article or the powers of any person entitled under any such mortgage or other security to enforce the same as if this Order had not been made and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Order the power may continue to be exercised as if this Order had not been made.

29.—(1) For the purposes and subject to the provisions of the Education Act 1921—

Transfer
 of public
 elementary
 schools &c.
 within
 added area
 and of loans.

- (a) Any public elementary school provided by the County Council as local education authority and situate within the added area and the furniture fittings books and apparatus belonging to the County Council of any public elementary school within the added area shall by virtue of this Order be transferred to and vest in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority;

- (b) All contracts debts and liabilities which immediately before the appointed day are existing or are owing by or attach to the County Council in respect exclusively of any public elementary school within the added area or of the furniture fittings books or apparatus or with respect to the officers and teachers of any such school within the added area shall by virtue of this Order enure to and be carried into effect by and be discharged

[Ch. lxi.] *Ministry of Health* [16 & 17 GEO. 5.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

A.D. 1926.

*Ashton-
 under-Lyne
 Order.*

and satisfied by the Corporation as the local education authority;

(c) Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this article;

(d) Subject to any adjustment which may hereafter be made the liability for the repayment of so much of any loan raised exclusively in respect of any public elementary school or in respect of the furniture fittings or apparatus transferred to and vested in the Corporation by virtue of this Order as will be owing immediately before the appointed day and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will then be owing shall be charged on the borough fund and the borough rate of the Borough and shall be repaid by the Corporation within the period for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable.

(2) In this article "public elementary school" includes the site and school house and also any land acquired and held by the County Council as the local education authority for purposes of elementary education.

Education
 byelaws and
 managers.

30.—(1) Any byelaws under the Education Act 1921 or any enactment repealed by that Act which may be in force in the existing Borough immediately before the appointed day shall apply to the Borough until revoked or altered by the Corporation in substitution for any such byelaws which may be in force in the added area.

(2) Any manager of any public elementary school within the added area who was appointed by the County Council or by the Urban Council shall vacate office on the appointed day.

County
 police.

31.—(1) On the appointed day such number of the members of the police force of the County as before that day shall have been determined by agreement subject to the approval of the Secretary of State between the Standing Joint Committee of the County and the Watch Committee of the Corporation or in default of agreement by the Secretary of State shall be transferred to and become part of the police force of the Borough:

Provided that no member of the police force of the County shall be so transferred without his consent.

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lxi.]
*Provisional Order Confirmation (Ashton-under-Lyne
Extension) Act, 1926.*

(2) Every member of the county police force so transferred shall hold office in the police force of the Borough upon the same tenure and subject to the same terms and conditions as the other serving members of the borough police force of the same rank as such member and any period of service which the transferred member was entitled to reckon before the transfer for purposes of pay promotion or pension in the police force of the County shall be reckoned for the same purpose in the police force of the Borough :

A.D. 1926.

—
*Ashton-
under-Lyne
Order.*

Provided that where the scale of ordinary pensions applicable to a member of the police force of the County who is so transferred is by virtue of Section 29 (1) (a) of the Police Pensions Act 1921 a scale other than that prescribed in Part I. of the First Schedule to that Act such scale shall continue to apply to him as if he had not been so transferred.

(3) The provisions of subsection (2) of Section 8 of the Police Pensions Act 1921 shall extend and apply to and in relation to any member of a police force transferred under this article as if that member had removed with the written sanction of the Chief Constable of the County and notwithstanding that at the date of the transfer that member may not have completed one year's approved service in the police force of the County.

32.—(1) The total amount in the pound in any financial year commencing on the First day of April of the consolidated rates and general rates to be levied by the Corporation upon any rateable hereditament situate within the added area shall during a period of ten years commencing on the appointed day be less by one shilling than the total amount in the pound of the consolidated rates and general rates to be levied by the Corporation in the same financial year upon any hereditament situate within the remainder of the Borough.

Differential
rating.

(2) In the application to hereditaments within the provisions of Section 76 of the Ashton-under-Lyne Corporation Act 1924 which are situate within the added area the percentages and fractions mentioned in paragraphs (1) and (2) of that Section shall be calculated on the net rate in the pound payable in respect of hereditaments which are not within the provisions of the Section and are situate within the added area after the deduction from the rate in the pound of such relief as may be afforded in pursuance of paragraph (1) of this article.

(3) The relief from rates afforded by this article shall be given by means of deductions from the sums assessed by the Corporation in respect of contributions by the added area to the expenses of the Corporation.

(4) Any sum deducted in pursuance of this article shall be specified in any demand note in respect of a consolidated rate

[Ch. lxi.] *Ministry of Health* [16 & 17 GEO. 5.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

A.D. 1926.

—
*Ashton-
 under-Lyne
 Order.*

Deductions
 in ascer-
 taining
 rateable
 value of
 tithes
 railways &c.

or general rate which may be issued to a ratepayer of the added area and the net contribution of that area to the expenses of the Corporation shall be distinguished on the demand note.

33. For the purposes of the first new valuation list to be prepared under the Rating and Valuation Act 1925 and of any subsequent valuation list to be prepared under that Act the amount of the deduction to be made from net annual value in the ascertainment of the rateable value of such rateable hereditaments within the Borough as are included in Class (3) of the hereditaments specified in Column (1) of Part II. of the Second Schedule to that Act shall be 33 per cent. being the percentage corresponding with the relief from consolidated rates made and levied for the existing Borough which is afforded to the owners and occupiers of like hereditaments by Section 76 of the Ashton-under-Lyne Corporation Act 1924.

PART IV.

SUPPLEMENTARY PROVISIONS.

Liquidation
 by Urban
 Council
 of current
 debts and
 liabilities.

34.—(1) The Urban Council shall by the levy of a rate liquidate as far as practicable before the appointed day all current debts and liabilities incurred by them.

(2) If default is made by the Urban Council in complying with the requirement in paragraph (1) of this article—

(a) The Corporation may after the appointed day make and levy over the area of the Township of Hurst a consolidated rate of such an amount in the pound as will be sufficient to defray the liability of that area in respect of the current debts and liabilities of the Urban Council;

(b) Any consolidated rate authorised by this article shall be levied with and as an additional item of the consolidated rate of the Borough but shall not be a rate to which the article in Part III. of this Order the marginal note whereof is "Differential rating" applies;

(c) Any consolidated rate authorised by this article may be made retrospectively to raise money for the payment of charges and expenses incurred by the Urban Council at any time within one year before the appointed day.

Apportion-
 ment by
 County
 Council of

35.—(1) As soon as practicable after the appointed day the County Council shall as regards any cash balance in their hands immediately before that day estimate the proportion

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lxi.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

thereof derived from county contributions in respect of elementary education paid by the Township of Hurst and subject to a deduction on account of undischarged liabilities in respect of that Township accruing up to the appointed day shall transfer such amount to the Corporation.

A.D. 1926.

—
*Ashton
 under-Lyne
 Order.*

balances
 and sums re-
 ceived under
 precepts.

(2) Any sum received on or after the appointed day by the County Council under a precept issued before that day in respect of the Township of Hurst shall be dealt with in the manner prescribed by paragraph (1) of this article.

(3) The apportionment under this article of any balance or any sum received under a precept shall be subject to review on an adjustment under this Order.

36.—(1) In the preparation of the autumn register for the year Nineteen hundred and twenty-six so far as it relates to any area affected by this Order it shall be competent to the Registration Officer to frame the register in separate parts for each area which will constitute a registration unit after this Order has come into operation instead of in separate parts for each area constituting a registration unit before the operation of this Order.

Provisions
 as to register
 of electors.

(2) If the register of local government electors for any electoral area affected by this Order is not so framed as to show the persons entitled to vote at an election to be held for an electoral division ward or other voting area—

- (a) The Town Clerk in the case of an election for any voting area within the Borough; and
- (b) The Registration Officer of the Parliamentary County of Lancaster in the case of an election for any voting area outside the Borough;

shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election.

(3) It shall be the duty of any officer designated by the Corporation under Section 72 of the Ashton-under-Lyne Corporation Act 1924 to perform the duties of overseers in relation to the preparation of the register of electors to render such assistance as may be required by the Town Clerk of the Borough or Registration Officer of the Parliamentary County of Lancaster for the purpose of such alteration or re-arrangement.

(4) Where in the opinion of the Secretary of State the circumstances so require the Secretary of State may make such order as appears to him to be necessary or desirable to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

[Ch. lxi.] *Ministry of Health* [16 & 17 GEO. 5.]
*Provisional Order Confirmation (Ashton-under-Lyne
Extension) Act, 1926.*

A.D. 1926.

—
*Ashton
under-Lyne
Order.*

Adaptation
of provisions
as to adjust-
ments.

37. For the purposes of the application of Section 62 of the Act of 1888 to any adjustment under that Section which may become necessary in consequence of this Order that Section shall have effect—

- (a) As if in subsections (5) (6) and (7) thereof the expression “council” included any authority affected by this Order or by anything done in pursuance of this Order; and
- (b) As if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction.

Existing
officers of
Urban
Council.

38.—(1) All persons who on the date of the Act of Parliament confirming this Order are officers of the Urban Council shall on the appointed day be transferred to and become officers of the Corporation.

(2) Every officer so transferred shall hold his office by the same tenure and upon the same terms and conditions as if this Order had not been made and while performing similar duties to those which he was required to perform immediately before the appointed day shall receive not less salary or remuneration and shall be entitled to not less pension (if any) than the salary remuneration or pension to which he would have been entitled if this Order had not been made.

(3) The Corporation may distribute their business among the transferred officers in such manner as they may think proper and every officer shall perform such duties in relation to that business as may be directed by the Corporation and the Corporation may abolish the office of any officer.

(4) If at any time within five years after the appointed day any transferred officer is required by the Corporation to perform duties which are not analogous to or which are an unreasonable addition to those which that officer was required to perform immediately before the appointed day the officer may relinquish his office.

Compensa-
tion to
existing
officers.

39.—(1) Every officer in office on the date of the Act of Parliament confirming this Order who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary (and for whose compensation

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lxi.]
Provisional Order Confirmation (Ashton-under-Lyne
Extension) Act, 1926.

no other provision is made by any enactment for the time being in force) shall be entitled to compensation for that loss from the Corporation.

A.D. 1926.

—
Ashton-
under-Lyne
Order.

(2) Any transferred officer who relinquishes his office or any officer whose services are dispensed with or whose salary is reduced within five years after the appointed day because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed unless the contrary is shown to have suffered a direct pecuniary loss in consequence of this Order.

40.—(1) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this Order regard shall be had to the conditions and circumstances mentioned in subsection (1) of Section 120 of the Act of 1888 and the compensation shall not exceed two-thirds of the annual pecuniary loss suffered by virtue of this Order or of anything done in pursuance or in consequence of this Order or if the compensation is payable otherwise than by way of an annual sum two-thirds of the capital value of such annual pecuniary loss.

Determina-
tion of com-
pensation.

(2) Any compensation payable under this Order to any officer shall be paid out of the borough fund and borough rate of the Borough and the provisions of Section 120 of the Act of 1888 shall apply subject to the following and any necessary modifications :—

- (a) Any reference in that Section to the County Council shall be construed as a reference to the Corporation and in subsection (7) of that Section for the words “ the same or any other county council ” there shall be substituted the words “ the council of any county or county borough or under any district council ”;
- (b) References in that Section to “ the passing of this Act ” shall be construed as references to the date on which the abolition or relinquishment of office takes effect or the direct pecuniary loss commences as the case may be; and
- (c) The expression in subsection (1) of that Section “ the “ Acts and Rules relating to Her Majesty’s Civil “ Service ” shall mean the Acts and Rules relating to Her Majesty’s Civil Service which were in operation at the date of the passing of the Act of 1888.

(3) The compensation payable under this Order to an officer who on the date of the Act of Parliament confirming this Order shall hold two or more offices under any local authority or local authorities and who shall have devoted the whole of his time to the duties of such offices shall not be reduced by reason of

[Ch. lxi.] *Ministry of Health* [16 & 17 GEO. 5.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

A.D. 1926. the fact that he has devoted only part of his time to each of such offices.

—
*Ashton-
 under-Lyne
 Order.*

(4) If any officer was temporarily absent from his employment during the war whilst serving in His Majesty's Forces or the Forces of the Allied or Associated Powers either compulsorily or with the sanction or permission of the local authority such period of temporary absence shall be reckoned as service under the local authority in whose employment he was immediately before and after such temporary absence :

Provided that in the case of an officer who after the Armistice voluntarily extended his term of service with the Forces no period of absence during such extension shall be so reckoned. .

(5) The Corporation may in their discretion and in consideration of the fact that any officer was appointed to his office as a specially qualified person or of the fact that he had prior to his appointment served as a deputy assistant or clerk to any officer not holding a temporary appointment add any number of years (not exceeding ten) to the number of years which such officer would otherwise be entitled to reckon for the purpose of computing the compensation to which he would be entitled under the Acts and Rules relating to Her Majesty's Civil Service as applied by this Order.

Compensa-
 tion and
 superannua-
 tion.

41. No officer shall be entitled to receive compensation under this Order for pecuniary loss and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

Audit of
 accounts of
 Urban
 Council.

42.—(1) The accounts of the Urban Council and of their committees and officers shall be made up to the appointed day and shall be audited by the district auditor in like manner and subject to the like incidents and consequences as if this Order had not been made.

(2) Any sum certified at the audit by the district auditor to be due from any person shall be paid to the Corporation.

Saving for
 main roads
 within
 added area.

43. Nothing in this Order shall empower the Corporation to claim to maintain and repair any main road situate within the added area.

Savings for
 legal pro-
 ceedings
 contracts &c.

44.—(1) No alteration effected by this Order shall cause to abate or shall prejudicially affect or prevent the continuance of any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against the Urban Council or any contract deed bond agreement or other instrument (subsisting immediately before the appointed day) entered into or made by that Council or their predecessors :

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lxi.]
*Provisional Order Confirmation (Ashton-under-Lyne
 Extension) Act, 1926.*

Provided that—

A.D. 1926.

(i) Any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against the Urban Council in relation to the added area or any part thereof may be continued prosecuted and enforced by or against the Corporation; and

—
*Ashton
 under-Lyne
 Order.*

(ii) All contracts deeds bonds agreements and other instruments (subsisting immediately before the appointed day) entered into or made by the Urban Council (or their predecessors) in relation to the added area or any part thereof may be continued and enforced as fully and effectually as if instead of that Council (or their predecessors) the Corporation had been a party thereto.

(2) All legal proceedings pending immediately before the appointed day may be amended in such manner as may be necessary or proper in consequence of this Order.

45. Notwithstanding the alterations of area effected by this Order all contribution orders and precepts made or issued before the appointed day shall be as valid in law as if this Order had not been made.

Saving for
 contribution
 orders and
 precepts.

46. Nothing in this Order shall alter the area for the supply of gas water or electricity by any company under any local Act or Provisional Order confirmed by Parliament or under any special order made in pursuance of the Gas Regulation Act 1920 or the Electricity Supply Acts 1882 to 1922 or shall prejudice or affect the existing rights and powers of any such company under any such Act or Order.

Saving for
 statutory
 undertakers.

47. Nothing in this Order shall affect the provisions of the Rating and Valuation Act 1925.

Saving for
 15 & 16 Geo.
 5. c. 90.

48. Nothing in this Order shall be construed as restricting the powers of the Minister under the Acts relating to the Relief of the Poor or the powers of the Secretary of State the Minister or of any county council under the Act of 1888 or the Act of 1894.

Saving for
 powers of
 Minister &c.

49. Nothing in this Order shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

Charities.

50. This Order may be cited as the Ashton-under-Lyne (Extension) Order 1926.

Short title.

[Ch. lxi.] *Ministry of Health* [16 & 17 GEO. 5.]
*Provisional Order Confirmation (Ashton-under-Lyne
Extension) Act, 1926.*

A.D. 1926.

*Ashton
under-Lyne
Order.*

The SCHEDULES.

FIRST SCHEDULE.

PART I.—LOCAL ACTS RELATING TO THE EXISTING BOROUGH.

Session and Chapter.	Short Title.
12 & 13 Vict. c. xxxv. -	The Ashton-under-Lyne Improvement Act 1849.
40 & 41 Vict. c. clxxi. -	The Ashton-under-Lyne Improvement Act 1877.
49 & 50 Vict. c. lxxviii. -	The Ashton-under-Lyne Improvement Act 1886.
56 & 57 Vict. c. cxcv. -	The Ashton-under-Lyne Corporation Act 1893.
2 Edw. 7. c. xlv. -	The Ashton-under-Lyne and Dukinfield Corporations (Alma Bridge &c.) Act 1902.
7 & 8 Geo. 5. c. xlii. -	The Ashton-under-Lyne Corporation Act 1917.
14 & 15 Geo. 5. c. lxxxvii.	The Ashton-under-Lyne Corporation Act 1924.

PART II.—SANITARY CONFIRMATION ACTS RELATING TO THE EXISTING BOROUGH.

Session and Chapter.	Short Title.	Order thereby confirmed.
32 & 33 Vict. c. cl.	The Local Government Supplemental Act 1869 (No. 2).	Order dated 23rd June 1869.
42 & 43 Vict. c. xliii.	The Local Government Board's Provisional Orders Confirmation (Ashton-under-Lyne &c.) Act 1879.	The Ashton-under-Lyne Order 1879.
45 & 46 Vict. c. lxiii.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1882.	The Ashton-under-Lyne Order 1882.
54 & 55 Vict. c. clvi.	The Local Government Board's Provisional Orders Confirmation (No. 7) Act 1891.	Order dated 1st May 1891.

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lxi.]
*Provisional Order Confirmation (Ashton-under-Lyne
Extension) Act, 1926.*

Session and Chapter.	Short Title.	Order thereby confirmed.	A.D. 1926. — <i>Ashton under-Lyne Order.</i>
57 & 58 Vict. c. xx.	The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1894	The Ashton-under-Lyne Order 1894.	
59 & 60 Vict. c. cviii.	The Local Government Board's Provisional Orders Confirmation (No. 14) Act 1896.	The Ashton-under-Lyne and Stalybridge Order 1896.	
61 & 62 Vict. c. lxxxiii.	The Local Government Board's Provisional Orders Confirmation (No. 11) Act 1898.	The Ashton-under-Lyne and Dukinfield Order 1898.	
62 & 63 Vict. c. cx.	The Local Government Board's Provisional Orders Confirmation (No. 5) Act 1899.	The Ashton-under-Lyne Order 1899.	
63 & 64 Vict. c. clxxxii.	The Local Government Board's Provisional Orders Confirmation (No. 13) Act 1900.	The Ashton-under-Lyne Order 1900.	
3 Edw. 7. c. lxxviii.	The Local Government Board's Provisional Orders Confirmation (No. 10) Act 1903.	The Ashton-under-Lyne Order 1903.	
10 Edw. 7 & 1 Geo. 5. c. lxxxvi.	The Local Government Board's Provisional Orders Confirmation (No. 9) Act 1910.	The Ashton-under-Lyne Order 1910.	
12 & 13 Geo. 5. c. xcv.	The Ministry of Health Provisional Orders Confirmation (No. 7) Act 1922.	The Ashton-under-Lyn Order 1922.	
13 & 14 Geo. 5. c. xxxvii.	The Ministry of Health Provisional Orders Confirmation (No. 4) Act 1923.	The Ashton-under-Lyne Order 1923.	

PART III.—TRAMWAY CONFIRMATION ACTS RELATING TO THE
EXISTING BOROUGH.

Session and Chapter.	Short Title.	Order thereby confirmed.
63 & 64 Vict. c. cci.	The Tramways Orders Confirmation (No. 4) Act 1900.	The Ashton-under-Lyne Corporation Tramways Order 1900.
1 Edw. 7. c. cclxxvii.	The Tramways Orders Confirmation (No. 1) Act 1901.	The Ashton-under-Lyne Corporation Tramways Order 1901.

[Ch. lxi.] *Ministry of Health* [16 & 17 GEO. 5.]
*Provisional Order Confirmation (Ashton-under-Lyne
Extension) Act, 1926.*

A.D. 1926. PART IV.—ELECTRIC LIGHTING CONFIRMATION ACT RELATING
TO THE EXISTING BOROUGH.

*Ashton-
under-Lyne
Order.*

Session and Chapter.	Short Title.	Order thereby confirmed.
55 & 56 Vict. c. xxxvii.	The Electric Lighting Orders Confirmation (No. 2) Act 1892.	The Ashton-under-Lyne (Corporation) Electric Lighting Order 1892.

SECOND SCHEDULE.

LOCAL ACTS AND CONFIRMATION ACTS RELATING TO THE ASHTON-
UNDER-LYNE STALYBRIDGE AND DUKINFIELD
(DISTRICT) WATERWORKS JOINT COMMITTEE.

PART I.—LOCAL ACTS.

Session and Chapter.	Short Title.
33 & 34 Vict. c. cxxxi.	The Ashton-under-Lyne Stalybridge and Dukinfield (District) Waterworks Act 1870.
38 & 39 Vict. c. lxxvii.	The Ashton-under-Lyne Stalybridge and Dukinfield (District) Waterworks Act 1875.
48 & 49 Vict. c. xxii.	The Ashton-under-Lyne Stalybridge and Dukinfield (District) Waterworks Act 1885.
55 & 56 Vict. c. cxx.	The Ashton-under-Lyne Stalybridge and Dukinfield (District) Waterworks Act 1892.
7 Edw. 7. c. xcii.	The Ashton-under-Lyne Stalybridge and Dukinfield (District) Waterworks Act 1907.
8 Edw. 7. c. xl.	The Audenshaw Urban District Council Act 1908. (Parts I. and II.)

PART II.—CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order thereby confirmed.
45 & 46 Vict. c. lxxiii.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1882.	The Ashton-under-Lyne Order 1882.
46 & 47 Vict. c. cxxxvi.	The Local Government Board's Provisional Orders Confirmation (No. 5) Act 1883.	Order dated 18th May 1883.

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lxi.]
*Provisional Order Confirmation (Ashton-under-Lyne
Extension) Act, 1926.*

Given under the Official Seal of the Minister of Health
this Third day of May One thousand nine hundred and
twenty-six.

A.D. 1926.

—
*Ashton-
under-Lyne
Order.*

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

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